

Data" means: (a) special categories of data enumerated in European Union Regulation 2016/679, Article 9(1) or any successor legislation; (b) patient, medical, or other protected health information regulated by the Health Insurance Portability and Accountability Act (as amended and supplemented) ("HIPAA"); (c) credit, debit, or other payment card data or financial account information, including bank account numbers or other personally identifiable financial information; (d) social security numbers, driver's license numbers, or other government identification numbers; (e) other information subject to regulation or protection under specific laws such as the Children's Online Privacy Protection Act or Gramm-Leach-Bliley Act ("GLBA") (or related rules or regulations); or (f) any data similar to the above protected under foreign or domestic laws. Customer further acknowledges that the Software and related features are not intended to meet any legal obligations for these uses, including HIPAA and GLBA requirements, and that GitLab is not a Business Associate as defined under HIPAA. Therefore, notwithstanding anything else in this Agreement, GitLab has no liability for Sensitive Data processed in connection with Customer's use of the Software.

14.4 To the extent Customer has Users of the SaaS Software located in the People's Republic of China, Customer represents and warrants that it has complied with all requirements of a "personal information processor," as that term is defined under the Personal Information and Protection Law of the People's Republic of China ("PIPL"). This includes the requirement to provide adequate notice and obtain all necessary consents from relevant Users prior to the overseas transfer and processing of Personal Data by GitLab, as well as onward transfers and processing by GitLab's third-party subprocessors. In addition, Customer warrants, where required, that it will not transfer Personal Data without a security assessment, as described in PIPL, from the Cyberspace Administration of China. Nothing in this section limits GitLab or Customer's obligations under the DPA.

15. MISCELLANEOUS

15.1 If any provision of this Agreement is found to be unenforceable or invalid, that provision will be limited or eliminated to the minimum extent necessary so that this Agreement will otherwise remain in full force and effect and enforceable.

15.2 This Agreement is not assignable, transferable or sublicensable by either party without the other party's prior written consent, not to be unreasonably withheld or delayed; provided that either party may transfer and/or assign this Agreement to a successor in the event of a sale of all, or substantially all, of its business or assets to which this Agreement relates.

15.3 Except as otherwise provided in this Section 15.3, this Agreement is the complete and exclusive statement of the mutual understanding of the parties and supersedes and cancels all previous written and oral agreements, communications and other understandings relating to the subject matter of this Agreement. All waivers and modifications to this Agreement must be in a writing signed or otherwise agreed to by each party, except as otherwise provided herein. Notwithstanding anything to the contrary in the foregoing (a) GitLab may, from time to time, offer certain experimental or beta features or products in the Software and (b) Customer acknowledges and agrees that (i) access to and use of experimental or beta features or products will be governed by the Testing Agreement available at: <https://about.gitlab.com/terms/current-terms-of-use> and (ii) Customer's access or use of such experimental or beta features or products will constitute Customer's acceptance of such Testing Agreement.

15.4 No agency, partnership, joint venture, or employment is created as a result of this Agreement and neither party has any authority of any kind to bind the other in any respect whatsoever.

15.5 In any action or proceeding to enforce rights under this Agreement, the prevailing party will be entitled to recover costs and attorneys' fees.

15.6 All notices under this Agreement will be in writing and will be deemed to have been duly given when received, if personally delivered; when receipt is electronically confirmed, if transmitted by facsimile or e-mail; and upon receipt, if sent by certified or registered mail (return receipt requested), postage prepaid. Any notices to GitLab shall also include a copy to <legal@gitlab.com>.

15.7 In addition to any rights that accrued prior to termination, the provisions of Sections 3.3, and 5 through 15 shall survive any termination of this Agreement.

15.8 This Agreement will be governed by the laws of the State of California, U.S.A. without regard to its conflict of laws provisions. The federal and state courts sitting in San Francisco County, California, U.S.A. will have proper and exclusive jurisdiction and venue with respect to any disputes arising from or related to the subject matter of this Agreement. The United Nations Convention on Contracts for the International Sale of Goods is expressly disclaimed by the Parties with respect to this Agreement and the transactions contemplated hereby. GitLab may provide translations of this Agreement or other terms or policies. Translations are provided for informational purposes only and if there is any inconsistency or conflict between a translation and the English version, the English version will control.

APPENDIX 1: GitLab Subscriptions

Fees for the Subscriptions are based upon the number of Users and the applicable level of support and/or functionality of the Software, as set forth in the table below. In the event Customer does not reasonably comply with written specifications or instructions from GitLab's service engineers, regarding any support issue or request (including without limitation, failure to make backups of Customer Content or versions of Software) (each, a "Support Issue"), GitLab may cease its support obligations to Customer with respect to such Support Issue upon fifteen (15) days written notice and Customer's inability to cure such noncompliance within the notice period.

SUBSCRIPTIONS AND LEVELS OF SUPPORT

Subscription	Level of Support (First Response Time)
Support Details	
Free (Formerly "Core" or "Free")	GitLab Community Forum
Starter (F.K.A "Basic" or "Bronze")	GitLab Standard Support
24 x 5 Support Next business day response (24 hour SLA) Submit Tickets at < https://support.gitlab.com >	

| Premium (Formerly Premium or Silver) | Priority Support (Based upon Support Impact) | See Priority Support Overview <<https://support.gitlab.com>>

|

| Ultimate (Formerly Gold or Ultimate) | Priority Support (Based upon Support Impact) | See Priority Support Overview <<https://support.gitlab.com>>

|

Note: Subscription names are subject to change, however, the applicable Subscription for that tier shall remain the same during a Subscription Term.

Support Impact categories are defined at: <<https://about.gitlab.com/support/definitions-of-support-impact>>

PRIORITY SUPPORT OVERVIEW: <<https://about.gitlab.com/support/priority-support>>

CUSTOMER SUCCESS SERVICES

Customer Success Services include additional assistance with respect to Customer's use of the GitLab Software. Customer Success Services are provided at no charge, an overview of the Customer Success Services can be found at <<https://about.gitlab.com/services/customer-success-services/>>. In order to receive Customer Success Service(s), Customer acknowledges and agrees that additional data and information ("Operational Data") will be collected. An overview of Operational Data can be found at: <<https://gitlab-org.gitlab.io/growth/product-intelligence/metric-dictionary/?datacategory=operational>>.

APPENDIX 2: Software as a Service (SaaS) Offering

With respect to Customer's purchase and/or use of the SaaS Software, the following additional terms shall apply.

AVAILABILITY

Availability to the SaaS Software will be measured, and reported on, by GitLab using instrumentation and observation tools specifically designed to provide a representative measure of service availability. Recent status, references to availability measurement definition, and historical reporting will be available at or linked from the GitLab system status site located at <<https://about.gitlab.com/handbook/engineering/monitoring/gitlabcom-service-level-availability>>.

RESILIENCY

GitLab will architect and maintain an underlying cloud infrastructure with commercially reasonable resiliency for all data, compute, and network services. At a minimum, GitLab will maintain the highest documented level of "GitLab Reference Architecture" as detailed at <<https://docs.gitlab.com>>.

BACKUPS

GitLab will maintain a commercially reasonable system of data backup process and technology to ensure that primary data sources remain recoverable in the event of various system failures.

MONITORING AND INCIDENT RESPONSE

GitLab will employ a system of instrumentation and observation tools to ensure that system behavior which may limit use of the SaaS Software is detected and announced. GitLab will also employ industry reasonable practices to maintain appropriate engineering personnel availability for the purposes of incident response(s).

UPDATES AND UPGRADES

GitLab will update the SaaS Software as updates are available and when reasonably practical to implement said updates. Update timing and process will remain at GitLab's discretion.

SCHEDULED SYSTEM MAINTENANCE

GitLab will occasionally perform scheduled system maintenance which requires limits to the use of part or all of the SaaS Software features, or significantly reduces features and functions during the scheduled system maintenance period. GitLab will provide ten (10) business days' notice for all scheduled system maintenance activities. GitLab will take a proactive approach to minimizing the need for such maintenance and will limit scheduled system maintenance to less than four (4) hours per calendar month. Notwithstanding the foregoing, in the event of an emergency or urgent issue which may negatively impact GitLab's customers, GitLab has the right to carry out unscheduled maintenance to remedy such instance(s). For the avoidance of doubt, such unscheduled maintenance shall: (i) be limited to only those issues which may negatively impact customers; and (ii) will be carried out in such a manner to provide for the least amount of disruption to customers.

SUSPENSION OF SERVICE

GitLab reserves the right to suspend service to the SaaS Software if: (i) Customer fails to comply with the Agreement and this Appendix, (ii) Customer exceeds set application limits, or (iii) requests or usage deemed malicious in nature is identified to be sourced from Customer accounts, personnel, or systems.

SECTION: legal/legacy/privacy-statement.md

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LEGACY: Privacy Statement (Effective Dates June 10, 2022 - March 18, 2024)

Introduction

At GitLab, we take the privacy and security of your information seriously. This privacy statement ("Privacy Statement") will explain how GitLab B.V. and GitLab, Inc. ("GitLab", "we", "our", "us") handle your personal data. "Personal Data," as used in this Privacy Statement, is information that identifies or can reasonably be linked directly or indirectly to an identifiable person. The privacy practices and standards detailed in this Privacy Statement apply to all data subjects globally, unless specifically noted otherwise. In particular, this Privacy Statement will touch on the following sections:

What Personal Data does GitLab collect about me?
What Personal Data is Not Collected by GitLab?
How does GitLab use my Personal Data?
With Whom does GitLab share my Personal Data?
How does GitLab Secure my Personal Data?
What are my rights and choices regarding Personal Data?
U.S. State Privacy Rights
Other important privacy information

This Privacy Statement applies to the GitLab websites ("Websites"), GitLab.com ("SaaS"), Self-managed ("Self-managed"), and additional software products and services; collectively "Services."

What Personal Data does GitLab collect about me?

The categories of Personal Data collected by GitLab change depending on the Services you use and whether those Services are free or paid. We have described below which Services correlate with the processing in each Personal Data category.

Information You Provide Directly

We collect the Personal Data you provide to us, for example:

Account Information: When you register for an account with GitLab, we collect information that identifies you such as your name, username, email address and password. This is collected for free and paid users of the SaaS product.

Profile Information: We collect information that you voluntarily provide in your user profile; this may include your public avatar (which may be a photo), additional email addresses, company/organization name, job title, country, social media handles, and biography. Please note this information may be visible to other users of the Services and to the public depending on the privacy setting you apply. This is collected for free and paid users of the SaaS product.

Payment Information: If you purchase a paid subscription from GitLab, we will collect payment information from you that may include your name, billing address and credit card or bank information. We may also use your credit card information to verify your identity and prevent abuse of our pipelines. Please note that GitLab does not directly process or store your entire credit card number, but we do direct that information to our third-party payment processors for processing. This is collected for paid users of the Self-managed and SaaS products.

Marketing Contact Information: If you request GitLab to contact you, or sign up for marketing materials or events, GitLab may collect information such as name, address, email address, telephone number, company name, and size of company. This may be collected through the Websites as well as through the use of the Self-managed or SaaS products.

Licensee Information: We collect licensee name, email address, and similar information associated with the individual that receives a license key for the paid users of the Self-managed product.

Content you provide through the use of the Services: Examples of content we collect and store

include but are not limited to: the summary and description added to an issue, your repositories, commits, project contributions, profile metadata, activity data, and comments. Content also includes any code, files and links you upload to the Services. This is collected for the free and paid users of the SaaS product.

Customer Support and Professional Services: If you contact GitLab customer support or receive professional services, we will collect information about you related to your account and to the requests you are making or the services being provided. Customer Support information is collected through the Websites, such as the GitLab Community Forum and the GitLab Support Portal.

Call Recordings: We may record and transcribe sales calls hosted on various videoconferencing technologies to enable our sales and support teams to share conversational insights, create training and presentations, and improve their internal processes.

Other Content You Submit: We may also collect other content that you submit to our Services. For example: feedback, comments and blog posts, or when you participate in any interactive features, surveys, contests, promotions, prize draws, activities or events. When you participate in interactive channels, we may collect and process information for demographic analysis. Such collection is not tied to any specific products, but may be collected through the Websites.

Information About Your Use of the Services We Collect Automatically

We may collect certain Personal Data automatically through your use of the Services, for example:

Device Information and Identifiers: When you access and use our Services, we automatically collect information about your device, which may include: device type, your device operating system, browser type and version, language preference, IP address, hardware identifiers, and mobile IDs. This information may be collected through any use of the Services.

Subscription Data: We may automatically collect information about the number of active users, licensing timetables, historical user count, and IP address. This is collected for paid Self-managed and SaaS instances. Subscription Data details can be found in the Metrics Dictionary.

Services Usage Data: Services Usage Data is broken into two categories: Optional Data and Operational Data. Optional Data is aggregated metrics regarding activity and feature usage that provide insights into the success of stages and features. Operational Data is aggregated metrics that track how value is delivered through the use of the Services and provide insights into optimal customer implementation. Both categories of Services Usage Data can be tied to the instance hostname, but the information does not contain any other individual user data. This is collected for the free and paid users of the Self-managed and SaaS products. For more information about the data collected and how to set your preferences, please visit [Services Usage Data](#).

Events Data: In addition to Services Usage Data, GitLab also uses event analytics, such as browsing duration, page clicks and page views, in a pseudonymized form to gain insights into end-to-end user behavior. This is collected for SaaS and Self-managed products.

Website Usage Data: When you visit our Websites, we automatically log information about how you interact with the sites, such as the referring site, date and time of visit, and the pages you have viewed or links you have clicked.

Cookies and Similar Tracking Technologies: GitLab uses cookies and similar technologies to provide functionality, such as storing your settings, and to recognize you as you use our Services. In addition, we use cookies to gather information to provide interest-based advertising which is tailored to you based on your online activity. Please review our Cookie Policy to learn about our practices and the controls we provide you.

Email marketing: When we send you emails, they may include technology such as a web beacon, that tells us your device type, email client, and whether you have received and opened an email, or clicked on any links contained in the email.

Buttons, tools, and content from other companies: The Services may include links or buttons to third-party services such as Facebook and Twitter. We may collect information about your use of these features. In addition, when you see or interact with these buttons, tools, or content, some information from your browser may automatically be sent to the other company. Please read that company's privacy statement for more information.

Information from Third-Parties and Partners

We may collect Personal Data from other parties in the following ways:

Vendors and Partners: We may receive information about you from third-parties such as vendors, resellers, partners, or affiliates. For example, we receive information from our resellers about you and your orders, or we may supplement the data we collect with demographic information licensed from third-parties in order to personalize the Services and our offers to you. Likewise, our sales, marketing, and recruiting teams may receive access to third-party databases containing information to enrich business contacts and other corporate data, or we may receive social listening data from companies that monitor public posts.

Third-Party sign-in services: GitLab allows you to sign up for/in to our Services using third-party accounts, such as Facebook or Google. When you give permission for this to happen, GitLab will receive information about you from your third-party account, such as name, email address, location and demographic information.

Other users of the Services: Other users of the Services may provide information about you when they submit issues and comments, or we may receive information when you are designated as a representative or administrator on your company's account.

When you are asked to provide personal data, you may decline. And you may use web browser or operating system controls to prevent certain types of automatic data collection. But if you choose not to provide or allow information that is necessary for certain products or features, those products or features may not be available or function correctly.

What Personal Data is Not Collected by GitLab?

GitLab does not intentionally collect sensitive Personal Data, such as social security numbers, genetic data, health information, or religious information. Although GitLab does not request or

intentionally collect any sensitive Personal Data, we realize that users might store this kind of information in a GitLab repository.

GitLab does not intentionally collect the Personal Data of individuals that are stored in users' repositories or other free-form content inputs. If Personal Data is stored in a user repository then the repository owner is responsible for its processing.

If you are a child under the age of 13, you may not have an account. With the exception of Educational Licenses, GitLab does not knowingly collect information from, or direct any of our Services to, children under 13. If we learn or have reason to suspect that a user is under the age of 13, we will close the child's account.

How does GitLab use my Personal Data?

GitLab uses your Personal Data for the following purposes:

- To create your account, identify and authenticate your access to the Services and provide you with the Services you have requested;
- To process your payment for the Services you have purchased;
- To understand how our Services are used and to improve our Services;
- To provide personalized experiences;
- To conduct user research and development;
- To send you important information about the Services;
- To send you information you have requested;
- To create digital productions and manage events;
- To provide trainings and learning opportunities;
- To enable partners to register and track deals;
- To provide workload and code review recommendations through machine-learning;
- To respond to your requests for customer support; - To improve the security of and troubleshoot our Services, as necessary to perform the contract governing your use of our applications or to communicate with you;
- To detect, prevent, or otherwise address fraud and abuse to protect you, GitLab, and third-parties;
- To enforce the legal terms that govern our Services;
- To comply with our legal obligations;
- To protect the rights, safety and property of GitLab, you, or any third-party; and
- For other purposes, for which we obtain your consent.

Legal Basis for the Processing of your Personal Data

When our processing is subject to international laws, including but not limited to the General Data Protection Regulation ("GDPR") that governs individuals located in the European Economic Area ("EEA"), we collect and process your Personal Data using one or more of the following legal bases set out by applicable law:

Performance of a contract: We use your Personal Data to provide the Services you have subscribed to, and to complete and administer the contract you have entered into with GitLab, which includes the Subscription Agreement, the Website Terms of Use, and any agreement to process payment information.

Legitimate Interests: We use your Personal Data for our legitimate interests, such as to provide you with relevant content, communicate with business leads, improve our products and services, and for administrative, security, fraud prevention and legal purposes. You may object to the processing of your Personal Data for these purposes at any time.

Consent: We may use your Personal Data, with your consent, for specific purposes such as marketing, surveys, call recordings, and research. You may withdraw your consent for the specific purpose or object to the processing of your Personal Data at any time.

Compliance with a Legal Obligation: We may use your Personal Data in connection with legal claims, regulatory compliance, and audits.

With Whom does GitLab share my Personal Data?

Sharing with Users and the Public: We may share your Personal Data with other users of the Services and with the public if you choose to make your SaaS Profile public. You have control over what information is public. To change your settings, go to User Settings in your profile. You should also be aware that any information you share as part of a project, blog, website etc. may be publicly available and you should consider this carefully when interacting with the Services.

Sharing with Managed Accounts and Administrators: If you have created a GitLab account with your corporate email address, we may share your Personal Data with your Company if your Company enters into a commercial relationship with GitLab. If this happens, then your use of the software and your account is subject to the terms and any data protection agreement between your Company and GitLab.

In the event you change the email address on your account from a corporate email address to a personal email address and, thereafter, your Company enters into a commercial relationship with GitLab, your Personal Data related to that account will not be shared with your Company. GitLab will not link an account to a Company based on retroactive use of a corporate email.

In addition, if you choose to become a member of a project, your username, email address, IP address, the date when access was granted, the date when access expires, and your access role will be shared with the group owners of that project.

Sharing with Service Providers: We share your Personal Data with our service providers. These are companies who provide services on our behalf, such as hosting our Services, marketing, advertising, social, analytics, support ticketing, credit card processing, security and other such similar services. These companies are subject to contractual requirements that govern the security and confidentiality of your information.

For example, we use analytics providers, such as Google Analytics, to help us understand the operation and performance of our Services. To learn about how Google uses and shares data it collects through its services, please visit <https://www.google.com/policies/privacy/partners/>. In addition, please visit our Sub-Processors page to see the list of our Sub-Processors that we use in order to provide customer support and host the Services.

Sharing with Partners and Resellers: GitLab works with third-parties who provide sales,

consulting, support and technical services for our Services. Where permitted and with your consent (if required), we may share your data with these partners and resellers.

Sharing with Affiliated Companies: GitLab will share information collected with companies owned and operated by us.

Sharing for Fraud and Prevention Abuse: We may share your information when we have a good faith belief that the disclosure is necessary to prevent fraud, abuse of our services, defend against attacks, and to protect the safety of GitLab and our users.

Law Enforcement: GitLab may disclose Personal Data or other information we collect about you to law enforcement if required in response to a valid subpoena, court order, search warrant, a similar government order, or when we believe in good faith that disclosure is necessary to comply with our legal obligations, to protect our property or rights, or those of third-parties or the public at large.

Merger or Acquisition: We may share your Personal Data if we are involved in a merger, sale, or acquisition of corporate entities or business units. If any such change of ownership happens, we will ensure that it is under terms that preserve the confidentiality of your Personal Data, and we will notify you on our website or by email before any transfer of your Personal Data.

Sharing Personal Data across national borders

Our Services are hosted in the United States and information we collect will be stored and processed on our servers in the United States. Our employees, contractors, affiliated organizations, service providers, and sub-processors that process Personal Data may be located in the United States or other countries outside of your home country. If you reside in the EEA, United Kingdom, or Switzerland, and we transfer information about you to a jurisdiction that has not been found by the European Commission to have adequate data protections, we will use available safeguards and legal mechanisms to help ensure your rights and protections, including using Standard Contractual Clauses or obtaining your consent.

How does GitLab Secure my Personal Data?

We work hard to protect your Personal Data. We employ administrative, technical, and physical security controls where appropriate, to protect your information. For more information on our security practices please see: [Technical and Organizational Security Measures for GitLab.com](#).

Data Retention

In order to protect your Personal Data, GitLab will only retain your Personal Data for as long as your account is active or as needed to perform our contractual obligations, provide you the Services, comply with legal obligations, resolve disputes, preserve legal rights, or enforce our agreements.

GitLab reserves the right to delete inactive accounts, projects, namespaces, and associated content. GitLab may deem an account, project, or namespace inactive based on various criteria, including, but not limited to, the account creation date, the last time there was a valid log-in, and the date of the last contribution. If we plan to delete your account or projects, we will provide advance notice by sending a message to the email address registered to your

account. GitLab encourages you to utilize your account on occasion to avoid the risk of being deemed inactive.

What are my rights and choices regarding Personal Data?

You have the right to access, correct, restrict or delete your Personal Data, and to port your Personal Data to another company. While these rights may vary by jurisdiction, GitLab provides you with the same rights and choices, no matter where you live. We provide these rights free of charge unless your requests are manifestly unfounded and excessive.

You may exercise your choices and rights as follows:

To opt out of email marketing: You may opt-out of email marketing by clicking the "unsubscribe" link located at the bottom of any marketing email you receive or by visiting our preference center and unsubscribing. You may continue to receive transactional email messages about your account and the Service after you have unsubscribed.

To opt-out of Interest-based advertising: If you wish to opt-out of interest-based advertising, please visit the Cookie Policy to see your options.

Request a copy of your information: You may request a copy of the Personal Data that GitLab has about you.

Update your Information: If you already have an account, you may access, update, or alter your user profile information by logging into your account and updating profile settings.

To delete your Account: If you only want to delete your SaaS account, you may do so by logging into your account and going to the "Delete my Account" option in your profile settings. If your intention is to delete your Personal Data across all systems, including your account, you need to fill out a Personal Data Request Form and select "Account Deletion (full)" in the "Request Type" dropdown menu. If your account is tied to a Company that has entered into a commercial relationship with GitLab, you will have to ask your Company administrator to remove your account from that corporate namespace before we can delete it. Once your account is no longer associated with that corporate namespace, GitLab will process your deletion request according to the process stated herein.

Please note that due to the open source nature of our Services, we may retain limited Personal Data indefinitely in order to provide a transactional history. For example, if you provide your information in connection with a blog post or comment, we may display that information even if you have deleted your account as we do not automatically delete community posts. Also, if you contribute to a public project (not owned by GitLab), and you provide your Personal Data in connection with that contribution, your Personal Data will be embedded and publicly displayed with your contribution, and we will not be able to delete or erase it because doing so would break the project.

One exception to embedded information in a public project occurs when your Personal Data is added by you or someone else to the comments section of a public project. In such a case, your Personal Data will be redacted since removing this information from only the comments section will not break the project.

If you contribute to a GitLab owned project by commenting in, or creating an issue or merge request and you provide your Personal Data in connection with that contribution, your Personal Data associated with your contribution will be deleted and attributed to a ghost user. However, please note that if the content of the contribution contains Personal Data, this information would remain and you will need to submit a specific request to have this information deleted.

To port your projects: You may port your projects by either using the Export functionality provided within the SaaS product which will also include all metadata, or by cloning your repositories. To port your profile information, you may use the API.

To inform your Supervisory Authority: In the unlikely event you disagree with our handling of your request, you have the right to file a complaint with the competent supervisory authority in your jurisdiction.

US State Privacy Rights

If you are a California or Virginia resident, please visit the U.S. State Privacy Rights Disclosures for a specific description of your privacy rights and collection practices.

Other important privacy information

Statement Changes

GitLab may change its Privacy Statement from time to time. When we do, we will update the date at the top of this Statement. If we decide to make a significant change to our Privacy Statement, we will post a notice of the update on the homepage of our Website. We may also provide notification via email of any material changes to our Privacy Statement.

Contact Us

Your information is controlled by GitLab B.V. and GitLab Inc. If you have questions or concerns about the way we are handling your Personal Data, please email us with the subject line "Privacy Concern" at DPO@gitlab.com.

SECTION: legal/legalops/_index.md

The Strategy & Legal Ops team promotes and institutes streamlined processes, efficient tools, and centralized program management to ensure LACA remains agile and able to support every area of GitLab's business.

Check out our issue board to learn more about what we're working on.

Objectives

1. Strategic Planning and Financials: Build, execute, and iterate on a best-in-class strategic plan, including management of LACA's budget from planning through forecasting and reporting.
2. Legal Operations: Optimize LACA operations through tools, processes, and operational capabilities. Drive enhancements to the LACA tech stack.

3. Program and Project Management: Define and drive initiatives spanning across LACA and GitLab. Examples include: vendor management, billing and accruals, designated insiders and pre-clearance process, tool administration, and team member engagement activities.

Legal Billing Process

GitLab uses Brightflag's Legal Spend Management platform to process and review legal invoices and accruals.

See the Brightflag invoicing process in the internal handbook.

Accruals Process

Accruals submission reminder notifications are automatically sent through Brightflag to ensure vendors submit their accruals on time.

- Law firms with active matters will receive two automated reminder emails at 06:15 UTC on the following days:
 - First Reminder: Five calendar days before the deadline.
 - Final Reminder: On the day of the deadline.
- If the deadline falls on a weekend, the email will be sent on that weekend day.
- If accruals are submitted on all matters before the deadline for a given vendor office, the notification emails will not be sent to that vendor.

Legal & Corporate Affairs Expenditure Request Process

This process is designed to enable LACA team members to submit requests related to attending events/conferences, furthering development, or purchasing tools/software funded by LACA. This process does not apply to equipment, Individual Use Software or other personal reimbursement requests.

- All expenses / reimbursements must be in accordance with GitLab's Travel & Expense Policy.
- All requests for use of LACA funds require approval from applicable stakeholders within the LACA Expenditure Request Issue Template.
- Requests must be submitted, (i) no less than ninety (90) days prior to the event/purchase request date, and (ii) no more than once per year.
- For conferences or development requests, team members are expected to share materials and insight with others within LACA (and GitLab).

Types of Expenditures

- Growth & Development: Team members can review the Growth & Development Fund and various options available to GitLab team members. Note: The program would not cover costs associated with travel & expenses, which would be allocated to the LACA budget.
- Tools / Software: For requests related to new tools or software, a LACA Expenditure Request Issue Template is required.

Expenditure Process Overview

- LACA team members must first communicate their intended request with their manager.

- If supported by their manager, the team member will complete the "laca-travel-and-expense-request" template.
- Included within the LACA Expenditure Request Issue Template are details that the team member must complete.
- Upon being submitted, the request will be reviewed internally by LACA leadership.
- If approved, the request will then be assigned to Finance to ensure applicable funds are available.
- Requests are considered fully approved only when all stakeholder checkboxes have been completed. Please note, all expenses tied to the request must be submitted in accordance with GitLab's Travel & Expense Policy.

SECTION: legal/legalops/navex.md

Access

We are transitioning GitLab's learning and compliance training to LevelUp, our central portal for talent enablement and on-demand learning. During this transition period, annual refresher training will be delivered through LevelUp with the exception of new hire training. New hire training will be delivered through NAVEX until we have completed our transition to LevelUp.

All team members will receive automatic access to their assigned compliance training courses. New team members have a task in their onboarding issue to complete assigned compliance courses within 30 days of starting.

Courses

New hires are enrolled in the following courses on their start date:

- Ethics and Code of Conduct
- Insider Trading
- Global Data Privacy
- Team members in Finance, Legal & Corporate Affairs, Marketing, and Sales: Anti-Bribery and Corruption
- Team members employed by or working with our public sector entity: Government Contracting: Gifts, Gratuities, and Bribery

Each of these courses should take around 30 minutes or less to complete.

Anti-Harassment

Team members are also enrolled in the following anti-harassment-related course(s) based on their role and location.

Role	Location	NAVEX Course	Approximate Duration
Individual Contributor	Outside the US	Global Workplace Harassment	30 minutes
Individual Contributor	US	The Workplace Harassment 10 course that meets your specific jurisdictional requirements	60 minutes (exact length will vary depending location)

Manager	Outside the US (unless any direct reports are located in Cook County, Illinois)	Global Workplace Harassment for Managers	30-60 minutes
Manager	US (and any having direct reports located in Cook County, Illinois)	Workplace Harassment 10 for Managers, designed to meet the heightened training requirements that apply to GitLab due to its business operations in various states and the City of Chicago, Illinois	120 minutes
All	Cook County, Illinois and/or having direct reports in Cook County, Illinois	Bystander Intervention	60 minutes

If you complete the course under the time required for your jurisdiction, you will be prompted to spend the remaining time reviewing the course material in order to meet location-specific requirements.

Refresher Training and Recertification

Team members will be enrolled in refresher training on a regular basis and asked to complete a certification for certain courses (including Ethics and Code of Conduct).

Best Practices for Using NAVEX

For the best LevelUp user experience, be aware of any special browser plug-ins, add-ons, or settings that may interfere with pop-ups. If you see a 0% progress bar during a course, note that some courses only report completion status, not ongoing progress. Use "My Learning" and/or Transcript features to verify completion and monitor your assignments. We have a dedicated Slack channel for platform technical issues - fy26-levelup-support. Include details about any errors or issues you're experiencing. For questions about course content (not technical issues), use compliance-training.

If you continue to experience difficulties or have questions, contact compliance-training.

SECTION: legal/policies/_index.md

SECTION: legal/policies/gifts-contributions.md

Gifts and Entertainment Policy

Overview

The purpose of the GitLab Inc. Gifts and Entertainment Policy is to provide our team members with information and guidelines to empower them to make educated decisions and avoid violating GitLab Inc.'s Code of Business Conduct and Ethics Policy and the Anti-Corruption Policy. Whenever giving or receiving business gifts, team members are required to follow the GitLab Inc. Gifts and Entertainment Policy, our Code of Business Conduct and Ethics Policy and our Anti-Corruption Policy. In addition, team members are required to follow the local laws of the

country that may apply.

As a reminder, the GitLab Inc. Code of Business Conduct and Ethics (a) prohibits gifts or favors to or from any third party, except for promotional material of nominal value and gifts of modest value that are related to commonly recognized events or occasions; and (b) limits marketing and client entertainment expenditures to those that are necessary, prudent, job related and consistent with our policies.

In the ordinary course of business, team members may offer and receive customary business gifts to promote GitLab Inc., build goodwill and strengthen working relationships. If in doubt about the appropriateness of accepting an unsolicited gift or entertainment, the team member should consult their manager before giving or receiving business gifts.

In general, team members shall not seek or accept for themselves (or any member of their family), or provide or offer to any company or individual external to GitLab Inc. (i.e., a "third party"), any gifts, entertainment, or other favors of a character that go beyond common courtesies consistent with ethical and accepted business practices.

What is a "gift"? What is "entertainment"?

Anything of value that is accepted from or provided to another individual or organization outside of GitLab Inc. This can include merchandise or promotional logo items, gift baskets, discounts on services, loans, cash, gift certificates, gift cards or any form of compensation. Tickets to cultural events or sporting events, the use of another's plane or accommodations, and personal use of a condominium or vacation home when the recipient is not accompanied by the third party are also considered "gifts." One example of a gift would be where a vendor sends a team member two tickets to a cultural event for the team to use with the guest of their choice. In this instance, the vendor is not hosting the event or in attendance.

"Entertainment" is any meal, refreshment, paid attendance to events (ex. cultural or sporting events) or other type of business courtesy that team members attend with the third party who is providing the entertainment. One example of this is attending a sporting event with a vendor who is also in attendance and hosting the event.

Giving Gifts and Entertainment General Guidelines

Gifts or entertainment may be given only where appropriate and where there is no risk of creating the perception of influencing the recipient in their decision. Please keep in mind that recipients can be fellow team members or external third parties.

Gifts must be of nominal value - so items such as mugs, t-shirts, hats or other promotional/"swag" type items. Entertainment must be reasonable. Excessive or uncommon gifts or entertainment are strictly prohibited. Event prizes, raffles, and giveaways at business conferences or events are generally allowed as long as the giveaway is random, done in a public forum, and the item is not excessive.

Team members should not give gifts or entertainment on a regular or routine basis to the same third party.

As a reminder, team members are required to follow the local laws of the country that may apply

and if in doubt, they should consult with their manager prior to giving the potential gift.

Accepting Gifts and Entertainment General Guidelines

Unsolicited gifts or entertainment may only be accepted if they do not go beyond common courtesy and are customary and appropriate under local customs. Offers of entertainment may only be accepted by team members if they cannot be seen as excessive or uncommon and take place in settings that are appropriate.

Under no circumstances may team members accept a bribe, kickback, favor, gratuity, gift, entertainment or anything of value, either directly or indirectly, in order to obtain or retain business or otherwise gain favorable treatment or an improper advantage from GitLab Inc.

Acceptable gifts must be of nominal value - so items such as mugs, t-shirts, hats or other promotional/"swag" type items. Entertainment must be reasonable. Excessive or uncommon gifts or entertainment are strictly prohibited. Event prizes, raffles, and giveaways at business conferences or events are generally allowed as long as the giveaway is random, done in a public forum, and the item is not excessive. Gift baskets and flowers that are not excessive are generally acceptable.

Team members should not receive gifts or entertainment on a regular or routine basis from the same third party. As always, team members are required to follow the local laws of the country that may apply and if in doubt, they should consult with their manager.

In certain instances, a team member may be offered free software and/or hardware from companies for testing purposes. If a team member is offered software and/or hardware, they may accept it on behalf of GitLab Inc., provided (a) the software and/or hardware is necessary to perform the team member's job or contribute to an open source project on behalf of GitLab Inc.; (b) the team member reports the software and/or hardware to the Company's Security Team; and (c) the team member notifies their manager of the hardware and/or software that was donated. All such donated software and/or hardware shall be the property of GitLab Inc. and if requested, subject to immediate return to the Company.

Unacceptable Gifts

It is never acceptable to give or receive gifts or entertainment that are requested or offered in exchange for personal gain or unfair business advantage or that influence or give the appearance of influencing business judgments. It is also never acceptable to give or receive gifts or entertainment that are illegal or that would violate the GitLab Values .

Under no circumstances should gifts or entertainment be requested or offered in situations involving government contracting or subcontracting.

The giving or receiving of gifts of cash, stock, bonds, stock options, or loans are not allowed under any circumstances.

In the event that a team member receives a gift that is inappropriate or "unacceptable", the team member should report it to their manager and politely return the gift with an explanation that GitLab Inc. policy does not permit them to accept such gifts. If returning the gift is not practical, the team member should reach out to the compliance-legal Slack channel

for next steps.

Gifts to Government Officials

Any conduct that could appear improper should be avoided when dealing with government officials and employees or contractors. Payments, gifts, or other favors given to a government official or employee are strictly prohibited as it may appear to be a means of influence or a bribe. Failure to avoid these activities may lead to violations of the Foreign Corrupt Practices Act (among other anti-bribery laws and regulations) and expose the government agency, the government employee, our company, and our team members to substantial fines and penalties. For additional information on dealing with government officials please see GitLab Inc.'s Anti-Corruption Policy.

Team members should review the Public Sector Rules of Engagement section of the handbook for additional information on dealing with U.S. State and local government, as well as Federal Government Rules of Engagement.

Political Activities and Contributions

You may support the political process through personal contributions or by volunteering your personal time to the candidates or organizations of your choice. These activities, however, must not be conducted on company time or involve the use of any company resources. You may not make or commit to political contributions on behalf of GitLab.

Charitable Contributions

We support community development throughout the world. GitLab team members may contribute to these efforts, or may choose to contribute to organizations of their own choice. However, as with political activities, you may not use company resources to personally support charitable or other non-profit institutions not specifically sanctioned or supported by the company. Please review the Philanthropy Policy for guidelines and instructions to request support.

SECTION: legal/policies/product-third-party-trademarks-guidelines.md

Scope

These guidelines apply to the use of third-party trademarks in the GitLab product. Use of third-party trademarks on GitLab websites, marketing or sales materials, or in other customer or public-facing materials is not covered by these guidelines. For guidance on using third-party trademarks in such public-facing materials, refer to the Guidelines for Use of Third-party IP in External Materials.

Some requests for use of third-party trademarks in the GitLab product will need to be reviewed by the Customer Advocacy Team, while other requests will follow this process and be reviewed by Legal, depending on whether the logo is owned by a GitLab customer/partner and/or if the logo will be used in-product. See the chart below:

mermaid

graph TD

A("Is the company a customer?")-->|Yes|B("Is the customer also a GitLab partner\nwhose logo is being featured\nas a partner or integrator?")

B -->|No|C("Click to contact customer-advocacy-and-references")

B -->|Yes|D("Follow the Use of Third-party Trademarks in GitLab process")

A -->|No|E("Will the logo be used in-product?")

E -->|Yes|D("Click to follow the Use of Third-party Trademarks in GitLab process")

E -->|No|G("Click to contact legal")

click C "https://app.slack.com/client/T02592416/CLFCPMF8E"

click D "https://handbook.gitlab.com/handbook/legal/policies/product-third-party-trademarks-guidelines/"

click G "https://app.slack.com/client/T02592416/C78E74A6L"

In-product means that the logo will appear on both GitLab.com and self-managed. If it appears only on GitLab.com, it is not in-product.

What is a trademark?

Registered trademarks can be unstylized words or letters ("wordmarks"), like GitLab, or pictures ("logomarks"), like the GitLab Tanuki. Sometimes, wordmarks and logomarks are combined to create a logo. These guidelines apply to wordmarks, logomarks and logos, but some parts of it only apply to logomarks and logos. For brevity, throughout these guidelines references to logo shall be taken to mean both logomark and logo.

Trademarks (including logos, and company, product and service names) are the property of the trademark owner. Using a third-party trademark without the owner's authorisation can constitute trademark infringement and may expose GitLab to liability. Follow these guidelines to minimise the risk of trademark infringement when adding any third-party trademarks to the GitLab product.

Fair use of third-party trademarks

In certain limited circumstances, use of a trademark is permitted without the authorisation of the owner. This is sometimes referred to as fair use of the trademark.

Use of a third-party trademark must meet all of the following criteria to constitute fair use:

- The company, product or service in question cannot be identified without using the trademark.
- Only so much of the trademark as is necessary to identify the company, product or service is used. This means that using a logo will usually not constitute fair use. For example, you can identify GitLab just by using the wordmark GitLab; there is no need to use GitLab's logo.
- Use of the trademark does not imply sponsorship or endorsement by the owner.

Process for adding third-party trademarks to GitLab

Follow these steps when adding new third-party trademarks to GitLab, or intending to use an already approved third-party trademark in GitLab for a new purpose.

1. Check the proposed use complies with the Dos and Don'ts.
 - Legal will not approve requests for proposed uses of third-party trademarks that do not comply with the Dos and Don'ts set out in these guidelines.
1. Check if the proposed trademark and use have already been approved.
 - Legal operates a Third-party Trademark Tracker, which details the trademarks and uses which are approved for use in GitLab. Search this tracker to check if the trademark you are proposing to add, and the proposed use, are already approved.
 - If the trademark you are proposing to add has been approved previously, but the proposed use has not, or if the trademark and use have not previously been reviewed, according to the tracker, a new approval is required.
 - If the trademark you are proposing to add and the intended use have already been approved, there is no need to seek legal approval again. If in doubt, reach out to legal on Slack.
 - If you need to obtain official assets or guidelines for a trademark, consult with legal using the issue created in Step 5 first to determine how to proceed with making the request.
1. Consider whether the proposed use constitutes fair use or if it is permitted under the trademark owner's published guidelines.
 - If proposing to add a plain text wordmark to GitLab that constitutes fair use, legal approval is not required to proceed. The criteria for fair use are set out in these guidelines above. If unsure whether the proposed use constitutes fair use, create a new legal issue to discuss this with legal before proceeding.
 - If intending to add a wordmark for a purpose that doesn't constitute fair use, or intending to use a third party logo in-product, review the trademark owner's published trademark guidelines to determine if this grants GitLab a license to use the trademark, as intended.
 - If the trademark guidelines grant permission to use the trademark as intended, proceed to the next step of this process.
 - If the trademark guidelines do not grant permission to use the trademark as intended, or if unable to locate the trademark guidelines, continue to the next step of this process, and flag this with Legal in the issue you create in step 5 of this process.
1. Add details of the new trademark, and proposed use, to the tracker.
 - Before contacting legal in Step 5, add as many details you can about the new trademark, or proposed use, to the Third-party Trademark Tracker.
1. Create a new third-party trademark approval issue.
 - Using the Third-party Trademark Approval issue template, create a new issue to obtain approval from legal for the proposed trademark, or the intended use.
1. Add the trademark to the SVGs project.
 - Once legal have approved the use of the trademark, create a merge request adding the .svg file of the new trademark to the SVGs project third-party logos repo.
1. Check for revisions to this process for future requests to use third-party trademarks in-product
 - Refer back to these guidelines and this process each time you want to add a new third-party trademark to GitLab, or use an existing trademark for a new purpose, to ensure the most up-to-date process is being followed.

Dos & Don'ts for use of third-party trademarks in GitLab

When using a third-party trademark in GitLab:

Do not:

- Use the trademark as part of the name of a GitLab product, service, or feature. Refer to the Product Principles for guidance on product and feature naming.
- Use the trademark in a way that implies sponsorship or endorsement by the owner.
- For logos, alter the trademark in any way. If you need to alter the iconography, colour or interaction of a third-party logo to conform to GitLab's CSS, reach out to legal to discuss.
- For logos, combine the trademark with any other symbol, words, image or design.

Do:

- Use the trademark for referential purposes only, i.e. to refer to another company, product, or service, and for no other purpose.
- Review the trademark owner's published trademark guidelines to see if it permits the proposed use, if:
 - the proposed trademark and use have not already been approved by legal, or
 - if the proposed use does not constitute fair use.
- For logos, comply with any applicable trademark or brand guidelines, or other terms of use imposed by the trademark owner.
- For logos, obtain the image file from the owner's repository of brand assets or another owner-authorized source. The file format can be changed, or the logo recreated in another file format, provided the result is visually identical to the original.
- For logos, save the image file in the illustrations/third-party-logos directory in the gitlab-svgs project.

SECTION: legal/policies/website-terms-of-use.md

Last updated: 28 April 2022

Website Terms of Use

PLEASE READ THIS AGREEMENT CAREFULLY BEFORE ACCESSING OR USING THE WEBSITE. BY ACCESSING OR USING ANY PART OF THE WEBSITE, YOU AGREE TO BE BOUND BY THE TERMS AND CONDITIONS OF THIS AGREEMENT. IF YOU DO NOT AGREE TO THE TERMS AND CONDITIONS OF THIS AGREEMENT, THEN DO NOT ACCESS THE WEBSITE. THE WEBSITE IS AVAILABLE ONLY TO INDIVIDUALS WHO ARE AT LEAST 13 YEARS OLD.

These Website Terms of Use (the "Agreement") govern all use of the GitLab.com website, or other website(s) owned and operated by GitLab (the "Website"). The Website is offered subject to your acceptance, without modification, to the terms and conditions contained herein as updated from time to time. This Agreement is subject to this Agreement. For the avoidance of doubt, this Agreement does not control or govern your use of the GitLab products and services. Please visit the GitLab Terms Page to see the applicable agreement(s) related to your use of GitLab products and services.

1. Website Eligibility

1.1. The Website, and Content (as defined herein) provided on the Website by GitLab, is provided only to entities and persons over the age of 13.

2. License and Ownership

2.1. GitLab grants to you a limited, personal, non-transferable, non-sublicensable, revocable license to access and use the Website, including Content provided within the Website, in the manner presented by GitLab.

2.2. Ownership, right and title of all Content provided on the Website shall remain with GitLab (as applicable) at all times. This Agreement does not transfer any GitLab, or third party intellectual property, to you.

2.3. GIT is a trademark of Software Freedom Conservancy and our use of "GitLab" is under license. Other trademarks, service marks, graphics and logos used in connection with the Website may be the trademarks of other third parties. Your use of the Website grants you no right or license to reproduce or otherwise use any GitLab or third-party trademarks.

3. Responsibility of Website Visitors

3.1. GitLab has not reviewed, and cannot review, all of the materials, website links (including to third party websites) and content posted on the Website (collectively referred to as the "Content"). Therefore, GitLab cannot and will not be responsible for the Content or their effect(s). By operating the Website, GitLab does not represent or imply that it endorses the Content provided or that it believes such Content to be accurate, useful or non-harmful. You are responsible for taking precautions as necessary to protect yourself and your computer systems from viruses, worms, Trojan horses, and other harmful or destructive Content. GitLab disclaims any responsibility for any harm resulting from the use by visitors of the Website, or from any downloading by those visitors of Content posted on the Website. The Website is provided "AS IS" and GitLab and its affiliates, suppliers and licensors hereby disclaim all warranties of any kind, express or implied, including, without limitation, the warranties of merchantability, fitness for a particular purpose and non-infringement. Neither GitLab nor its suppliers or licensors, makes any warranty that the Website will be error free or that access thereto will be continuous or uninterrupted.

3.2. By accepting this Agreement, you agree not to use, or facilitate others to use, the Website in a way that is harmful to others or overburdens or otherwise impairs the Website. Examples of such use include, without limitation:

- Engaging in illegal or fraudulent activities;
- Infringing a third party's intellectual property rights;
- Distributing harmful or offensive Content that is defamatory, obscene, abusive, an invasion of privacy or harassing;
- The distribution of malicious/commercial spam;
- Violating the security or integrity of any computer, network or communications system;
- Using the Website to mine or demonstrate proof-of-work for a cryptocurrency or blockchain; or
- Using any process or device (automated or otherwise) to retrieve, index, "data mine", "scrape", or in any way reproduce the presentation of this website or its Content, unless otherwise permitted under applicable content licensing permissions.

4. DMCA and Privacy Policies

4.1. As GitLab asks others to respect its intellectual property rights, it respects the

intellectual property rights of others. If you believe that Content located on or linked to the Website violates your copyright, you are encouraged to notify GitLab in accordance with our DMCA policy.

4.2. Your use of the Website is subject to the GitLab Privacy Policy, which is incorporated herein by reference.

5. Modifications / Updates

5.1. GitLab has the right to update all or any part of the Content, Website, and terms of this Agreement at any time without notice. Your continued use of the Website shall constitute agreement to any and all such updates.

5.2. GitLab reserves the right at any time, and from time to time, to modify or discontinue, temporarily or permanently, the Website (or any part of it) with or without notice.

6. General Representation

6.1. You represent and warrant that: (i) your use of the Website will be in strict accordance with this Agreement and with all applicable laws and regulations (including without limitation any local laws or regulations in your country, state, city, or other governmental area, regarding online conduct and acceptable content, and including all applicable laws regarding the transmission of technical data exported from the United States or the country in which you reside); and (ii) your use of the Website will not infringe or misappropriate the intellectual property rights of any third party.

7. Termination

7.1. GitLab may terminate your access to all or any part of the Website at any time, with or without cause, with or without notice, effective immediately.

8. Limitation of Liability

8.1. In no event will GitLab or any of its affi